

CHAPTER 09

FUNDAMENTAL RIGHTS PROTECTED UNDER THE CONSTITUTION OF 1973



Basic Human Rights in the Constitution of Pakistan (1973)

The Constitution of Pakistan (1973) provides fundamental rights to all citizens of Pakistan. These rights are essential for ensuring justice, equality, and freedom for every individual. Here is a simple explanation of some of the basic human rights as guaranteed by the Constitution:

1. Right to Freedom

The Constitution ensures freedom for all individuals in Pakistan. This includes:

- **Freedom of movement:** Citizens can travel freely within the country and abroad.
- **Freedom of residence:** People can live anywhere in Pakistan and choose their place of residence.
- **Freedom to practice religion:** Citizens are free to follow and practice any religion.
- **Freedom to form associations:** People have the right to form groups or associations for social, political, or other purposes.

Article 15 guarantees the right to freedom of movement, while Article 18 guarantees the right to freedom of business and profession.

2. Right to Freedom of Speech

Freedom of speech is an important part of a democratic society. The Constitution allows people to:

- **Express their opinions freely:** Citizens can express their views publicly without fear of punishment.
- **Publish freely:** The press and media are free to publish information and opinions.

However, the right is not absolute and can be limited in situations where national security, public order, or the dignity of others is at risk. Article 19 guarantees the freedom of speech and expression, but it can be restricted in certain cases.

3. Right to Education

The Constitution guarantees the right to education for every citizen, aiming to ensure that all children receive education.

- Compulsory education for children between the ages of 5 to 16 years is provided by the state.

Article 25-A of the Constitution mandates that the state is responsible for providing free and compulsory education to all children up to the age of 16.

4. Right to Detention/Arrest

When a person is arrested or detained, they must be treated according to the law. The Constitution guarantees that:

- **No one can be arrested without reason:** The police must have valid grounds for arresting someone.
- **Right to be informed:** When arrested, the person must be informed about the reason for their arrest.
- **Right to a fair trial:** Every arrested person has the right to challenge their detention in court, and they must be given a fair trial.

Article 10 ensures the protection against unlawful detention and guarantees a fair trial.

5. Right to Know (Right to Information)

Citizens have the right to access information from the government. This is important for:

- **Transparency:** People can request information from government departments.
- **Accountability:** Citizens can hold the government accountable by knowing how decisions are made and resources are used.

Although the Constitution does not specifically mention this right, it is implied through Article 19-A, which gives citizens the right to access information held by public authorities.

6. Judiciary and Right to Fair Trial

The judiciary (courts) plays a vital role in protecting the rights of citizens. The Constitution ensures:

- **Independence of the judiciary:** Courts are independent from the government and can make decisions without interference.
- **Right to a fair trial:** Everyone has the right to be heard by a fair, impartial, and competent court.

Article 37 ensures that the judiciary remains independent and guarantees the right to a fair trial in Article 10-A.

7. Right to Basic Necessities

The Constitution of Pakistan also emphasizes the state's responsibility to provide citizens with basic necessities of life, such as:

- **Food, water, shelter, and health care:** These are fundamental for survival and must be provided, especially to those in need.
- **Work and livelihood:** The state should promote employment opportunities for people. While the Constitution does not specifically list each basic necessity, it ensures the state's responsibility in achieving a welfare society, aiming to fulfill citizens' needs through various provisions.

Conclusion

The Constitution of Pakistan (1973) guarantees fundamental human rights to all citizens, which are essential for ensuring freedom, justice, and dignity. These rights include:

- Freedom of movement, speech, and religion.
- Right to education.
- Protection against unlawful detention and arrest.
- Right to access information.
- Right to a fair trial and independent judiciary.
- Provision of basic necessities like food, shelter, and healthcare.

These rights are the foundation for a just and democratic society, providing equal opportunities and protection for all citizens of Pakistan.

1. Right to Freedom

• Freedom of Movement:

- **Article 15:** "The right to move freely throughout Pakistan."

• Freedom to Reside and Settle:

- **Article 16:** "The right to reside and settle in any part of Pakistan."

• Freedom to Practice Religion:

- **Article 20:** "Freedom to profess, practice, and propagate religion."

• Freedom to Form Associations:

- **Article 17:** "The right to form associations or unions."

2. Right to Freedom of Speech

• Freedom of Speech and Expression:

- **Article 19:** "Every citizen shall have the right to freedom of speech and expression, subject to any reasonable restrictions imposed by law in the interest of the sovereignty and integrity of Pakistan, public order, or morality."

3. Right to Education

- **Compulsory Education:**

- **Article 25-A:** "The State shall provide free and compulsory education to all children of the age of five to sixteen years in such manner as may be determined by law."

4. Right to Detention/Arrest

- **Protection Against Unlawful Detention:**

- **Article 10:** "No person shall be deprived of their liberty except in accordance with the law."

- **Right to Fair Trial:**

- **Article 10-A:** "For the determination of his civil rights and obligations or any criminal charge against him, a person shall be entitled to a fair trial and due process."

5. Right to Know (Right to Information)

- **Access to Information:**

- **Article 19-A:** "Every citizen shall have the right to access information in all matters of public importance, subject to regulation and reasonable restrictions imposed by law."

6. Judiciary and Right to Fair Trial

- **Independence of Judiciary:**

- **Article 175:** "The Judiciary shall be separated from the Executive."

- **Right to Fair Trial:**

- **Article 10-A:** "Every person shall be entitled to a fair trial and due process."

7. Right to Basic Necessities

- **Social Justice and Welfare:**

- **Article 38:** "The State shall secure the well-being of the people, irrespective of sex, caste, creed, or race, by securing—(a) the provision of adequate livelihood, (b) adequate facilities for public health, (c) free and compulsory education, (d) promotion of social justice and economic development."

- **Provision of Basic Necessities (e.g., food, shelter, healthcare):**

- **Article 38(d):** "The State shall provide adequate facilities for public health, education, and employment."